

25STCV22236 25STCV22236

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 25STCV22236 Hearing Date: July 6, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

25STCV22236

CENTURY

CITY MALL, LLC, A DELAWARE LIMITED LIABILITY COMPANY vs DIGITAL BRANDS GROUP, INC., A DELAWARE CORPORATION, et al.

July

6, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO COMPEL COMPLIANCE WITH DEFENDANT'S AGREEMENT TO PRODUCE DOCUMENTS TO FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT AND WITH CODE OF CIVIL PROCEDURE SECTION 2031.280.

RULING:

The Court grants the unopposed Motion.

On or before July 10, 2026,

Defendant DIGITAL BRANDS GROUP, INC. shall produce documents, without objections, and in full compliance with Defendant's agreement to produce documents to First Set of Requests for Production of Documents numbers 1–11, 13–25, 27–35, and 38–41, and pursuant to the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.). “Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.” (Code Civ. Proc., § 2031.280, subd. (a).)

I.

BACKGROUND

On July 29, 2025, CENTURY CITY MALL, LLC (Plaintiff) filed a Complaint against DIGITAL BRANDS GROUP, INC (Defendant), “FOR ALTER EGO ACTION ON JUDGMENT.”

Plaintiff alleges that it seeks to add Defendant as an alter ego to a Judgment against Plaintiff's former tenant Bailey 44, LLC, for over \$1.4 million.

On June 5, 2026, Plaintiff filed the Motion to compel Defendant to produce all documents as agreed, and Plaintiff reports that Defendant has not produced all documents it agreed to.

Defendant has filed no Opposition to this matter.

II.

LEGAL STANDARD

A motion to compel compliance as agreed with a request for production of documents is based upon a showing that the respondents failed “to permit an inspection ‘in accordance

with that party's statement of compliance.” (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 903. See also Code Civ. Proc., § 2031.320,

subd. (a).) A separate motion to compel production of documents as agreed in responses, cannot be substituted for a motion to compel further responses. (Ibid.)

Where respondents served

untimely discovery responses after parties have filed motions to compel initial responses, courts have broad discretion as to ruling, including: 1) denying the motion as moot, in whole or part, where valid responses without objections have resolved the motion; 2) awarding requested sanctions; 3) allowing moving party to take the motion off calendar; 4) considering the motion as voluntarily narrowed in scope; 5) compelling responses without objection, where no legally valid responses have been provided, as to some, or all, interrogatories; 6) treating the motion as one to compel further responses, and ruling accordingly, with, or without, a separate statement; 7) ordering the parties to meet and confer; 8) ordering moving party to file a separate statement; or, 9) ordering the motion off calendar while requiring the propounding party to file a motion to compel further responses. (Sinaiko Healthcare Consulting, Inc. v. Klugman (2007) 148 Cal.App.4th 390, 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion].) Under some circumstances, it may be an abuse of discretion for a court to treat a motion as being one to compel further responses without requiring a separate motion. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778 [addressing motion to deem admissions admitted].)

The failure to file a

proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693 [appellate court will not consider any erroneous rulings where an objection could have been made].)

III.

ANALYSIS

Plaintiff states that

Defendant has produced additional documents after the Motion's filing, but nevertheless documents including the following have not been produced:

.
Bailey's entity formation documents (RFP

5), corporate minute books (RFP 9), meeting minutes (RFP 10), and continuing resolutions or official actions (RFP 11);

.
Agreements between Bailey and Defendant (RFP 6);

.
Bailey's audited financial statements from 2020 to the present (RFP 13);¹

.
Balance sheets that reflect the judgment against Bailey in the Bailey action (RFP 18);

.
Documents related to the transfer of any assets valued at \$500 or more from March 2020 to the present or cash over \$500 from July 29, 2024 to the present to or from Bailey (RFP 24 & 25);

.
Negotiations of any lease agreements for Bailey retail stores from September 2023 (RFP 30);

.
Communications between Bailey and Defendant about the Bailey action (RFP 32); and

.
Communications about the Bailey judgment (RFP 33 & 34).

(Reply, p. 3.)

"If the party fails to make a production in accordance with its statement of compliance, the opposing party may file another motion to compel seeking compliance." (Bd. of

Registered Nursing v. Superior Court (2021) 59 Cal.App.5th 1011, 1033
[citing Code Civ. Proc., § 2031.320].)

Notwithstanding

supplemental productions, this Motion is not moot, given Defendant's failure to produce some documents as was agreed in discovery responses.

IV.

CONCLUSION

The Court grants the unopposed
Motion, as set forth above.